

Court No. - 40

Case :- WRIT - C No. - 10522 of 2022

Petitioner :- Arun Mishra

Respondent :- U.P. Electricity Regulatory Commission

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Ajay Singh

Hon'ble Vivek Kumar Birla,J.

Hon'ble Vikas Budhwar,J.

Heard Sri Arun Mishra, Advocate in-person and Sri Ajay Singh, who appears for the sole respondent.

With the consent of the parties, the present writ petition is being decided without calling for the response from the opposite party at the admission stage.

The present petition under Article 226 of the Constitution of India has been filed seeking following reliefs:

"1) Issue writ, order or direction in the nature of Certiorari quashing the order dated 15.3.2022 passed by the respondent to relieve the petitioner from the proceeding (Annexure -5).

2) Issue writ, order or direction in the nature of Mandamus commanding the respondent to allow the petitioner to appear in the suo moto petition No. SM26 of 2021."

Perusal of the relief sought in the present petition will reveal that the petitioner has challenged the order dated 15.3.2022, in so far as it pertains to relieving the petitioner in the proceedings emanating in the suo moto petition no. SM26/2021. Learned counsel for the petitioner has argued that he had filed complaints before the appropriate forum and against Electricity Distribution Company namely Purvanchal Vidyut Vitaran Nigam Ltd, against the illegality so sought to be committed by them, as there was delay in filing the FIR by the licensee in the cases of theft. It reveals from the record that besides the petitioner, several complaints were also lodged by the others and the sole respondent being Uttar Pradesh Electricity Regulatory Commission registered the case being Appeal No.263M of 2021 and thereafter directed the respondents in the said case to make their submission in the matter within seven days fixing 20.10.2021. The order further finds that on 27.10.2021 in the matter of non-compliance of the provisions of Electricity Act, 2003, Electricity Rule, 2005 and Clause 8(i), 8(ii) of Uttar Pradesh Electricity Supply Code, 2005, the matter was heard and a direction was issued to U.P. Power Corporation Ltd to make submissions within 15 days.

This Court also finds from the record that the petitioner, who appears in person also filed an intervention application vide e-mail dated 18.1.2022 and consequently, the sole respondents in hearing dated 20.1.2022, proceeded to provide an opportunity to the petitioner to appear in person while further leaving it open to the petitioner to file application in proper proforma. Petitioner as per his own-saying preferred an intervention application. A copy whereof as per the own-saying of the petitioner has been referred in paragraph-8 of the petition is marked as Annexure-3 at page 19 of the paper book.

Eventually, on 18.2.2022, the commission proceeded to hear the matter including the intervention application so preferred by the petitioner and proceeded to pass an order dated 15.3.2022 whereby in paragraph-12, this much is recited:

"12. On the request of Shri Arun Mishra, Advocate to participate as intervenor, the commission observed that this being a suo-motto proceeding, there does not appear any occasion for any intervenor. However, the commission allowed Mr. Mishra to submit the list of officers who are in habit of not complying with the guidelines of filing FIR within 24 hours to the commission... The Commission also decides to relieve Shri Arun Mishra from the proceedings."

Petitioner in-person, being aggrieved against the order relieving him, has approached this Court while filing present writ petition.

Before proceeding further, relevant extract of Regulation 20 of the Uttar Pradesh Electricity Regulatory Commission (Conduct of Business) Regulations, 2019 (hereinafter referred to as UPERC Regulations, 2019) is being quoted hereinunder:

"d. (ii) The Commission may permit such person or persons who file objection or comments as provided in clause (i) or any other person as the Commission considers appropriate to participate in the Proceedings before the Commission, in case the Commission considers the participation of such person or persons will facilitate the Proceedings and the decision in the matter."

Elaborating the submissions, the petitioner in-person has sought to argue that it was on his complaints, as well as of others that the proceedings were put to motion, which were ultimately shaped as suo moto proceeding while getting registered as Petition no.265M/2021. According to the petitioner in view of the provisions contained under sub-clause (ii) of Clause (d) of Regulation 20 UPERC Regulations, 2019, in so far as it pertains

to the relieving of petitioner is illegal as once intervention application was directed to be filed by the petitioner in person, then the petitioner is a necessary party in the lis, which is pending consideration before the sole respondent.

Sri Ajay Singh, who appears for sole respondent has sought to argue that the present proceedings being suo moto proceedings so sought to be initiated against the sole opposite party may be on the complaint of the petitioner in person and others cannot confer a legal right upon the petitioner in person to be allowed to remain as a party in the present proceedings, particularly, when the petitioner in person was allowed to intervene in the matter while directing him to submit the list of the officers, who are in the habit of non-compliance of the guidelines of filing FIR.

We have heard the argument of petitioner in person and Sri Ajay Singh, who appears for the sole respondent as well as perused the record.

According to this Court, a discretion has been vested with the opposite party under sub-clause (ii) of Clause (d) of Regulation 20 of the UPERC Regulations, 2019, to such person or persons, who files objections as provided in sub-clause (i) or any person as commission considers appropriate to participate in proceedings and the decision in the matter.

Here, in the present case, this Court finds that the petitioner in person filed an intervention application, which remained pending and the sole respondent relieved the petitioner in-person on the pretext that the proceedings were suo motu and according to the sole respondent, there existed no occasion to further allow the petitioner to participate in the proceedings, however, directed the petitioner in-person to submit list of the officers, who are not in the habit of complying with the guidelines of filing FIR within 24 hours.

This Court further finds that once a discretion has been vested with an authority, either to allow, reject or not to proceed with the participation of a person, who has preferred impleadment application, then obviously in absence of any cogent material, so supplied by the petitioner in person, this Court cannot take another view from the view so sought to be taken by the sole respondent. Even otherwise, there is nothing on record to substantiate as to what are the reasons necessitated allowing of the impleadment application in the light of the fact that the present proceedings are suo motu proceedings which are going on. Petitioner in-person on a repeated pointed query being raised as to what prejudice is being caused to him, in case the

order in question is allowed to operate, then he has miserably failed to show any prejudice while maintaining his stand that once he had filed intervention application, then the same ought to have been allowed.

In view of the aforesaid factual backdrop, coupled with the fact that the present proceedings are suo motu proceedings, this Court finds its inability to take a different view from the view taken by the sole respondent.

Resultantly, the present writ petition is wholly misconceived and is liable to be dismissed.

Accordingly the writ petition is **dismissed**.

Cost made easy.

Order Date :- 13.4.2022

N.S.Rathour